

and other allowances to members of advisory committees and other expenses in connexion therewith, to such amount as may be sanctioned by the Treasury, shall be defrayed out of moneys provided by Parliament.

Inter-
pretation.

5. In this Act the expression "labour exchange" means any office or place used for the purpose of collecting and furnishing information, either by the keeping of registers or otherwise, respecting employers who desire to engage workpeople and workpeople who seek engagement or employment.

Short title.

6. This Act may be cited as the Labour Exchanges Act, 1909.

CHAPTER 8.

An Act to prohibit the landing and selling in the United Kingdom of fish caught in prohibited areas of the sea adjoining Scotland or Ireland. [20th September 1909.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Landing and
selling of fish
illegally
caught pro-
hibited.

1. From and after the expiration of one month from the passing of this Act it shall not be lawful to land or sell in the United Kingdom any fish caught by the methods of fishing known as beam trawling and otter trawling within prohibited areas as defined in this Act; and fish so caught within such areas shall be added to the table of prohibitions and restrictions contained in section forty-two of the Customs Consolidation Act, 1876, and upon being brought to land in the United Kingdom shall be dealt with as goods imported and brought into the United Kingdom contrary to the said prohibitions and restrictions.

39 & 40 Vict.
c. 36.

Presumption
that fish are
illegally
caught.

2. If a trawling or other vessel shall have been employed—
(a) in fishing by the methods and within the areas aforesaid; or
(b) in taking on board fish caught by the methods and within the areas aforesaid,

within two months prior to the landing or selling, or attempt to land or sell, fish therefrom in the United Kingdom, any fish on board such trawling or other vessel shall for the purposes of this Act be presumed to have been caught by the methods and within the areas aforesaid.

Fishery
Board to
notify.

3. The Fishery Board for Scotland shall from time to time notify to the Commissioners of Customs and Excise, or to the officer or officers of Customs and Excise stationed at such ports as may be deemed necessary, the names, numbers, or other means of identification of all vessels with regard to which the said

Board are satisfied that on the date or dates specified in such notification such vessels were employed in fishing by the methods and within the areas aforesaid, or in taking on board fish caught by the methods and within the areas aforesaid, and such notification shall be in such form and regulated by such procedure as may be prescribed by the Secretary for Scotland, and shall be sufficient warrant for such Commissioners or officers to enforce the prohibitions and restrictions provided in section one hereof in the case of any vessel from which, within two months of the latest date specified in the notification, fish is landed or sold or attempted to be landed or sold in the United Kingdom.

4. Nothing in this Act shall affect or derogate from the provisions of section eight of the Herring Fishery (Scotland) Act, 1889: Provided that, in any case where fish have been forfeited in pursuance of the provisions of this Act, proceedings shall not be taken for a penalty under that Act. Saving.
52 & 53 Vict.
c. 23.

5. In this Act the expression "prohibited area" means— Definition of
prohibited
area.

(1) Any waters within which the methods of fishing known as beam trawling and otter trawling are prohibited by the Herring Fishery (Scotland) Act, 1889, or any byelaw made thereunder, but does not include any such waters within three miles from low-water mark of any part of the coast of Scotland, unless such waters form part of an area which, as defined for the purposes of the said Act or byelaw, extends more than three miles from low-water mark as aforesaid;

(2) Any waters within which the use of the method of fishing known as beam trawling or other trawling in or from any steamer or steamship or vessel propelled by steam is prohibited by any byelaw made under section three of the Steam Trawling (Ireland) Act, 1889, but does not include any such waters within three miles from low-water mark of any part of the coast of Ireland, unless such waters form part of an area which, as defined for the purposes of the byelaw, extends more than three miles from low-water mark as aforesaid. 52 & 53 Vict.
c. 74.

6. This Act, in its application to prohibited areas of the sea adjoining Ireland, shall be subject to the following modifications:— Application
to prohibited
areas adjoining
Ireland.

(a) A reference to the Lord Lieutenant shall be substituted for the reference to the Secretary for Scotland;

(b) A reference to the Department of Agriculture and Technical Instruction for Ireland shall be substituted for the reference to the Fishery Board for Scotland;

(c) Nothing in this Act shall affect or derogate from the provisions of section four of the Steam Trawling (Ireland) Act, 1889, or section one of the Fisheries (Ireland) Act, 1901: Provided that, in any case where 1 Edw. 7. c. 38.

fish have been forfeited in pursuance of the provisions of this Act, proceedings shall not be taken for a penalty under either of those sections; and

- (d) References to the methods of fishing known as beam trawling and otter trawling shall, as regards any prohibited area of the sea adjoining Ireland, be construed as references to any method of fishing prohibited by the byelaw relating to the area: Provided that nothing in this Act shall operate to prohibit the landing or selling of fish caught in any such area by the use of any such method in or from any vessel other than a steamer, steamship, or vessel propelled by steam.

Short title.

7. This Act may be cited as the Trawling in Prohibited Areas Prevention Act, 1909.

CHAPTER 9.

An Act to constitute the Union of South Africa.

[20th September 1909.]

WHEREAS it is desirable for the welfare and future progress of South Africa that the several British Colonies therein should be united under one Government in a legislative union under the Crown of Great Britain and Ireland:

And whereas it is expedient to make provision for the union of the Colonies of the Cape of Good Hope, Natal, the Transvaal, and the Orange River Colony on terms and conditions to which they have agreed by resolution of their respective Parliaments, and to define the executive, legislative, and judicial powers to be exercised in the government of the Union:

And whereas it is expedient to make provision for the establishment of provinces with powers of legislation and administration in local matters and in such other matters as may be specially reserved for provincial legislation and administration:

And whereas it is expedient to provide for the eventual admission into the Union or transfer to the Union of such parts of South Africa as are not originally included therein:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the South Africa Act, 1909.

Definitions.

2. In this Act, unless it is otherwise expressed or implied, the words "the Union" shall be taken to mean the Union of